

"REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT By direction of the Secretary of Labor		U.S. DEPARTMENT OF LABOR EMPLOYMENT STANDARDS ADMINISTRATION WAGE AND HOUR DIVISION WASHINGTON D.C. 20210
Daniel W. Simms Director	Division of Wage Determinations	Wage Determination No.: 2015-5369 Revision No.: 27 Date Of Last Revision: 12/03/2025

State: South Dakota

Area: South Dakota Counties of Lincoln, McCook, Minnehaha, Turner

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		17.51
01012 - Accounting Clerk II		19.66
01013 - Accounting Clerk III		21.99
01020 - Administrative Assistant		24.95
01035 - Court Reporter		20.08
01041 - Customer Service Representative I		16.26
01042 - Customer Service Representative II		17.75
01043 - Customer Service Representative III		19.92
01051 - Data Entry Operator I		14.66
01052 - Data Entry Operator II		16.00
01060 - Dispatcher, Motor Vehicle		22.43
01070 - Document Preparation Clerk		19.66
01090 - Duplicating Machine Operator		19.66
01111 - General Clerk I		14.66
01112 - General Clerk II		16.00
01113 - General Clerk III		17.96
01120 - Housing Referral Assistant		22.39
01141 - Messenger Courier		16.41
01191 - Order Clerk I		19.83
01192 - Order Clerk II		21.64
01261 - Personnel Assistant (Employment) I		18.59
01262 - Personnel Assistant (Employment) II		20.79
01263 - Personnel Assistant (Employment) III		23.19
01270 - Production Control Clerk		23.59
01290 - Rental Clerk		17.94
01300 - Scheduler, Maintenance		17.95
01311 - Secretary I		17.95
01312 - Secretary II		20.08
01313 - Secretary III		22.39
01320 - Service Order Dispatcher		20.05
01410 - Supply Technician		24.95
01420 - Survey Worker		18.71
01460 - Switchboard Operator/Receptionist		17.71
01531 - Travel Clerk I		19.24
01532 - Travel Clerk II		20.41
01533 - Travel Clerk III		22.41
01611 - Word Processor I		16.00
01612 - Word Processor II		17.95
01613 - Word Processor III		20.08
05000 - Automotive Service Occupations		
05005 - Automobile Body Repairer, Fiberglass		26.33
05010 - Automotive Electrician		24.52

05040 - Automotive Glass Installer	23.08
05070 - Automotive Worker	23.08
05110 - Mobile Equipment Servicer	20.26
05130 - Motor Equipment Metal Mechanic	25.95
05160 - Motor Equipment Metal Worker	23.08
05190 - Motor Vehicle Mechanic	25.95
05220 - Motor Vehicle Mechanic Helper	18.91
05250 - Motor Vehicle Upholstery Worker	21.65
05280 - Motor Vehicle Wrecker	23.08
05310 - Painter, Automotive	24.52
05340 - Radiator Repair Specialist	23.08
05370 - Tire Repairer	17.55
05400 - Transmission Repair Specialist	25.95
07000 - Food Preparation And Service Occupations	
07010 - Baker	17.97
07041 - Cook I	17.31
07042 - Cook II	19.72
07070 - Dishwasher	13.79
07130 - Food Service Worker	14.19
07210 - Meat Cutter	18.09
07260 - Waiter/Waitress	14.54
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	22.65
09040 - Furniture Handler	12.83
09080 - Furniture Refinisher	19.51
09090 - Furniture Refinisher Helper	15.04
09110 - Furniture Repairer, Minor	17.22
09130 - Upholsterer	21.08
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	16.64
11060 - Elevator Operator	16.41
11090 - Gardener	22.08
11122 - Housekeeping Aide	16.41
11150 - Janitor	16.41
11210 - Laborer, Grounds Maintenance	17.57
11240 - Maid or Houseman	15.03
11260 - Pruner	15.90
11270 - Tractor Operator	20.60
11330 - Trail Maintenance Worker	17.57
11360 - Window Cleaner	18.14
12000 - Health Occupations	
12010 - Ambulance Driver	19.13
12011 - Breath Alcohol Technician	21.44
12012 - Certified Occupational Therapist Assistant	26.23
12015 - Certified Physical Therapist Assistant	25.30
12020 - Dental Assistant	23.19
12025 - Dental Hygienist	41.40
12030 - EKG Technician	29.38
12035 - Electroneurodiagnostic Technologist	29.38
12040 - Emergency Medical Technician	19.13
12071 - Licensed Practical Nurse I	19.17
12072 - Licensed Practical Nurse II	21.44
12073 - Licensed Practical Nurse III	23.91
12100 - Medical Assistant	18.92
12130 - Medical Laboratory Technician	26.86
12160 - Medical Record Clerk	23.24
12190 - Medical Record Technician	25.99
12195 - Medical Transcriptionist	21.91
12210 - Nuclear Medicine Technologist	45.78
12221 - Nursing Assistant I	13.32
12222 - Nursing Assistant II	14.97
12223 - Nursing Assistant III	16.34
12224 - Nursing Assistant IV	18.35
12235 - Optical Dispenser	20.26
12236 - Optical Technician	19.17

12250 - Pharmacy Technician	20.77
12280 - Phlebotomist	18.47
12305 - Radiologic Technologist	31.44
12311 - Registered Nurse I	27.08
12312 - Registered Nurse II	33.12
12313 - Registered Nurse II, Specialist	33.12
12314 - Registered Nurse III	40.07
12315 - Registered Nurse III, Anesthetist	40.07
12316 - Registered Nurse IV	48.04
12317 - Scheduler (Drug and Alcohol Testing)	26.57
12320 - Substance Abuse Treatment Counselor	25.21
13000 - Information And Arts Occupations	
13011 - Exhibits Specialist I	18.57
13012 - Exhibits Specialist II	23.01
13013 - Exhibits Specialist III	28.15
13041 - Illustrator I	18.57
13042 - Illustrator II	23.01
13043 - Illustrator III	28.15
13047 - Librarian	25.48
13050 - Library Aide/Clerk	14.79
13054 - Library Information Technology Systems Administrator	23.01
13058 - Library Technician	16.26
13061 - Media Specialist I	16.60
13062 - Media Specialist II	18.57
13063 - Media Specialist III	20.71
13071 - Photographer I	17.78
13072 - Photographer II	19.89
13073 - Photographer III	24.64
13074 - Photographer IV	30.14
13075 - Photographer V	36.47
13090 - Technical Order Library Clerk	18.57
13110 - Video Teleconference Technician	18.11
14000 - Information Technology Occupations	
14041 - Computer Operator I	17.82
14042 - Computer Operator II	19.94
14043 - Computer Operator III	22.22
14044 - Computer Operator IV	24.69
14045 - Computer Operator V	27.35
14071 - Computer Programmer I	(see 1) 22.37
14072 - Computer Programmer II	(see 1)
14073 - Computer Programmer III	(see 1)
14074 - Computer Programmer IV	(see 1)
14101 - Computer Systems Analyst I	(see 1)
14102 - Computer Systems Analyst II	(see 1)
14103 - Computer Systems Analyst III	(see 1)
14150 - Peripheral Equipment Operator	17.82
14160 - Personal Computer Support Technician	24.69
14170 - System Support Specialist	27.35
15000 - Instructional Occupations	
15010 - Aircrew Training Devices Instructor (Non-Rated)	31.56
15020 - Aircrew Training Devices Instructor (Rated)	38.18
15030 - Air Crew Training Devices Instructor (Pilot)	45.78
15050 - Computer Based Training Specialist / Instructor	31.56
15060 - Educational Technologist	29.28
15070 - Flight Instructor (Pilot)	45.78
15080 - Graphic Artist	22.73
15085 - Maintenance Test Pilot, Fixed, Jet/Prop	45.78
15086 - Maintenance Test Pilot, Rotary Wing	45.78
15088 - Non-Maintenance Test/Co-Pilot	45.78
15090 - Technical Instructor	24.56
15095 - Technical Instructor/Course Developer	30.04
15110 - Test Proctor	19.83
15120 - Tutor	19.83
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations	

16010 - Assembler	13.02
16030 - Counter Attendant	13.02
16040 - Dry Cleaner	14.87
16070 - Finisher, Flatwork, Machine	13.02
16090 - Presser, Hand	13.02
16110 - Presser, Machine, Drycleaning	13.02
16130 - Presser, Machine, Shirts	13.02
16160 - Presser, Machine, Wearing Apparel, Laundry	13.02
16190 - Sewing Machine Operator	15.49
16220 - Tailor	16.10
16250 - Washer, Machine	13.64
19000 - Machine Tool Operation And Repair Occupations	
19010 - Machine-Tool Operator (Tool Room)	23.47
19040 - Tool And Die Maker	28.75
21000 - Materials Handling And Packing Occupations	
21020 - Forklift Operator	21.92
21030 - Material Coordinator	23.59
21040 - Material Expediter	23.59
21050 - Material Handling Laborer	19.28
21071 - Order Filler	17.78
21080 - Production Line Worker (Food Processing)	21.92
21110 - Shipping Packer	20.56
21130 - Shipping/Receiving Clerk	20.56
21140 - Store Worker I	14.13
21150 - Stock Clerk	18.87
21210 - Tools And Parts Attendant	21.92
21410 - Warehouse Specialist	21.92
23000 - Mechanics And Maintenance And Repair Occupations	
23010 - Aerospace Structural Welder	37.06
23019 - Aircraft Logs and Records Technician	29.34
23021 - Aircraft Mechanic I	35.18
23022 - Aircraft Mechanic II	37.06
23023 - Aircraft Mechanic III	38.91
23040 - Aircraft Mechanic Helper	25.63
23050 - Aircraft, Painter	33.25
23060 - Aircraft Servicer	29.34
23070 - Aircraft Survival Flight Equipment Technician	33.25
23080 - Aircraft Worker	31.30
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I	31.30
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II	35.18
23110 - Appliance Mechanic	24.15
23120 - Bicycle Repairer	18.36
23125 - Cable Splicer	45.68
23130 - Carpenter, Maintenance	22.85
23140 - Carpet Layer	26.32
23160 - Electrician, Maintenance	29.31
23181 - Electronics Technician Maintenance I	26.48
23182 - Electronics Technician Maintenance II	28.14
23183 - Electronics Technician Maintenance III	29.77
23260 - Fabric Worker	24.68
23290 - Fire Alarm System Mechanic	29.12
23310 - Fire Extinguisher Repairer	23.11
23311 - Fuel Distribution System Mechanic	33.80
23312 - Fuel Distribution System Operator	26.40
23370 - General Maintenance Worker	22.92
23380 - Ground Support Equipment Mechanic	35.18
23381 - Ground Support Equipment Servicer	29.34
23382 - Ground Support Equipment Worker	31.30
23391 - Gunsmith I	23.11
23392 - Gunsmith II	26.32
23393 - Gunsmith III	29.59
23410 - Heating, Ventilation And Air-Conditioning Mechanic	29.38

23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)	30.95
23430 - Heavy Equipment Mechanic	31.28
23440 - Heavy Equipment Operator	27.54
23460 - Instrument Mechanic	29.59
23465 - Laboratory/Shelter Mechanic	27.97
23470 - Laborer	19.28
23510 - Locksmith	27.97
23530 - Machinery Maintenance Mechanic	29.06
23550 - Machinist, Maintenance	25.28
23580 - Maintenance Trades Helper	21.56
23591 - Metrology Technician I	29.59
23592 - Metrology Technician II	31.17
23593 - Metrology Technician III	32.73
23640 - Millwright	29.70
23710 - Office Appliance Repairer	26.21
23760 - Painter, Maintenance	22.40
23790 - Pipefitter, Maintenance	27.89
23810 - Plumber, Maintenance	26.36
23820 - Pneudraulic Systems Mechanic	29.59
23850 - Rigger	29.59
23870 - Scale Mechanic	26.32
23890 - Sheet-Metal Worker, Maintenance	24.14
23910 - Small Engine Mechanic	19.80
23931 - Telecommunications Mechanic I	29.39
23932 - Telecommunications Mechanic II	30.93
23950 - Telephone Lineman	24.80
23960 - Welder, Combination, Maintenance	24.03
23965 - Well Driller	29.59
23970 - Woodcraft Worker	29.59
23980 - Woodworker	23.11
24000 - Personal Needs Occupations	
24550 - Case Manager	17.66
24570 - Child Care Attendant	12.90
24580 - Child Care Center Clerk	16.08
24610 - Chore Aide	17.77
24620 - Family Readiness And Support Services Coordinator	17.66
24630 - Homemaker	17.66
25000 - Plant And System Operations Occupations	
25010 - Boiler Tender	30.05
25040 - Sewage Plant Operator	28.40
25070 - Stationary Engineer	30.05
25190 - Ventilation Equipment Tender	21.89
25210 - Water Treatment Plant Operator	28.40
27000 - Protective Service Occupations	
27004 - Alarm Monitor	20.12
27007 - Baggage Inspector	18.00
27008 - Corrections Officer	25.51
27010 - Court Security Officer	27.91
27030 - Detection Dog Handler	20.12
27040 - Detention Officer	25.51
27070 - Firefighter	32.67
27101 - Guard I	18.00
27102 - Guard II	20.12
27131 - Police Officer I	31.54
27132 - Police Officer II	35.04
28000 - Recreation Occupations	
28041 - Carnival Equipment Operator	18.09
28042 - Carnival Equipment Repairer	19.39
28043 - Carnival Worker	13.96
28210 - Gate Attendant/Gate Tender	23.69
28310 - Lifeguard	16.12
28350 - Park Attendant (Aide)	26.50
28510 - Recreation Aide/Health Facility Attendant	19.34

28515 - Recreation Specialist	32.82
28630 - Sports Official	21.11
28690 - Swimming Pool Operator	22.09
29000 - Stevedoring/Longshoremen Occupational Services	
29010 - Blocker And Bracer	30.04
29020 - Hatch Tender	30.04
29030 - Line Handler	30.04
29041 - Stevedore I	28.17
29042 - Stevedore II	31.91
30000 - Technical Occupations	
30010 - Air Traffic Control Specialist, Center (HFO) (see 2)	46.07
30011 - Air Traffic Control Specialist, Station (HFO) (see 2)	31.77
30012 - Air Traffic Control Specialist, Terminal (HFO) (see 2)	34.99
30021 - Archeological Technician I	19.02
30022 - Archeological Technician II	21.27
30023 - Archeological Technician III	26.35
30030 - Cartographic Technician	26.35
30040 - Civil Engineering Technician	30.39
30051 - Cryogenic Technician I	29.18
30052 - Cryogenic Technician II	32.24
30061 - Drafter/CAD Operator I	19.02
30062 - Drafter/CAD Operator II	21.27
30063 - Drafter/CAD Operator III	23.72
30064 - Drafter/CAD Operator IV	29.18
30081 - Engineering Technician I	18.12
30082 - Engineering Technician II	20.34
30083 - Engineering Technician III	22.75
30084 - Engineering Technician IV	28.19
30085 - Engineering Technician V	34.48
30086 - Engineering Technician VI	41.72
30090 - Environmental Technician	26.35
30095 - Evidence Control Specialist	26.35
30210 - Laboratory Technician	23.72
30221 - Latent Fingerprint Technician I	29.18
30222 - Latent Fingerprint Technician II	32.24
30240 - Mathematical Technician	26.91
30361 - Paralegal/Legal Assistant I	21.55
30362 - Paralegal/Legal Assistant II	26.69
30363 - Paralegal/Legal Assistant III	32.65
30364 - Paralegal/Legal Assistant IV	39.49
30375 - Petroleum Supply Specialist	32.24
30390 - Photo-Optics Technician	26.35
30395 - Radiation Control Technician	32.24
30461 - Technical Writer I	26.83
30462 - Technical Writer II	32.82
30463 - Technical Writer III	39.70
30491 - Unexploded Ordnance (UXO) Technician I	29.28
30492 - Unexploded Ordnance (UXO) Technician II	35.43
30493 - Unexploded Ordnance (UXO) Technician III	42.46
30494 - Unexploded (UXO) Safety Escort	29.28
30495 - Unexploded (UXO) Sweep Personnel	29.28
30501 - Weather Forecaster I	29.18
30502 - Weather Forecaster II	35.50
30620 - Weather Observer, Combined Upper Air Or Surface Programs (see 2)	23.72
30621 - Weather Observer, Senior (see 2)	26.35
31000 - Transportation/Mobile Equipment Operation Occupations	
31010 - Airplane Pilot	35.43
31020 - Bus Aide	15.31
31030 - Bus Driver	20.48
31043 - Driver Courier	19.61
31260 - Parking and Lot Attendant	14.99
31290 - Shuttle Bus Driver	17.44
31310 - Taxi Driver	14.57
31361 - Truckdriver, Light	21.02

31362 - Truckdriver, Medium	22.45
31363 - Truckdriver, Heavy	28.18
31364 - Truckdriver, Tractor-Trailer	28.18
99000 - Miscellaneous Occupations	
99020 - Cabin Safety Specialist	17.27
99030 - Cashier	14.35
99050 - Desk Clerk	14.57
99095 - Embalmer	35.28
99130 - Flight Follower	29.28
99251 - Laboratory Animal Caretaker I	17.57
99252 - Laboratory Animal Caretaker II	18.83
99260 - Marketing Analyst	31.35
99310 - Mortician	35.28
99410 - Pest Controller	24.30
99510 - Photofinishing Worker	15.39
99710 - Recycling Laborer	17.84
99711 - Recycling Specialist	20.92
99730 - Refuse Collector	16.14
99810 - Sales Clerk	16.47
99820 - School Crossing Guard	15.68
99830 - Survey Party Chief	27.95
99831 - Surveying Aide	18.41
99832 - Surveying Technician	25.22
99840 - Vending Machine Attendant	18.07
99841 - Vending Machine Repairer	22.06
99842 - Vending Machine Repairer Helper	18.07

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA-

covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 10 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (See 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

**** HAZARDOUS PAY DIFFERENTIAL ****

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder.

All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of "wash and wear" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the "Service Contract Act Directory of Occupations", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable

relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
- 3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).
- 4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.
- 5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.
- 6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the "Service Contract Act Directory of Occupations" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."